

TENTATIVE RULING

Charlene Huihui
v.
Royce Redira, et al.
M91366

Claim of Exemption

Hearing Date: September 18, 2026

The Claim of Exemption filed by Judgment Debtor Royce Redira (“Debtor”) is **DENIED**. The Judgment Creditor, Credit Consulting Services, Inc. (“Creditor”), shall prepare the Proposed Order in accordance with this Tentative Ruling.

Background.

On September 4, 2008, the Court Clerk entered a default judgment against Debtor and Regina Redira for failure to repay a promissory note. The judgment was renewed on February 16, 2018, and later assigned to Credit Consulting Services, Inc. as assignee of Plaintiff Charlene Huihui.

On June 23, 2026, the court issued a Writ of Execution showing a remaining balance of \$28,512.59. The Court delivered the writ to the Orange County Sheriff for enforcement.

On August 24, 2026, Debtor filed a Claim of Exemption, asserting that all of his earnings are necessary to support himself, his spouse, and his 31-year-old daughter. [Claim of Exemption (Financial Statement) at ¶ 6.] He proposes \$100 in garnishment per pay period. [Claim of Exemption at ¶ 4.] His financial statement shows a net monthly income of \$14,400, monthly expenses of \$9,565, a \$900 monthly payment for back taxes, and bank balances totaling \$15,200. [Claim of Exemption (Financial Statement) at ¶¶ 2-5.]

Creditor opposed Debtor’s Claim of Exemption, arguing that the earnings claimed are not exempt, noting Debtor’s significant monthly surplus, and agreeing to accept the statutory 20% garnishment.

Discussion.

A judgment is enforceable upon entry. [Code Civ. Proc. § 683.010.] All property of the judgment debtor is subject to enforcement of a money judgment. [Code Civ. Proc. § 695.010.] A judgment debtor may make a Claim of Exemption by filing it with the levying officer, along with a Financial Statement. [Code Civ. Proc. § 706.105, subd. (b).] The debtor bears the burden of proof. [Code Civ. Proc. § 703.580, subd. (b).]

Debtor failed to meet his burden of proof. His own disclosures show a monthly surplus of \$3,935, based on a net monthly income of \$14,400 and monthly expenses of \$10,465. Further,

Debtor's daughter is 31 years old and not a legal dependent. This financial picture contradicts Debtor's claim that he can withhold only \$100 per pay period. Because Debtor's household can absorb the statutory garnishment without compromising necessary support, the Claim of Exemption is **DENIED**. [*Perfection Paint Products v. Johnson* (1958) 164 Cal.App.2d 739, 741 (The exemption statute should be broadly interpreted to allow a debtor and their family, despite the debtor's improvidence, to keep enough money for basic living standards so they can stay productive in the community. However, the debtor must prove their right to the exemption.).]

Creditor is willing to accept 20% per pay period as payment on account of the debt. [Opposition at ¶ 6.] This rate complies with Code of Civil Procedure section 706.050 and equates to \$3,100 per month, which is 20% of Debtor's gross pay of \$15,500. This fits within Debtor's stated \$3,935 surplus and is well within the household's cash reserves.

Conclusion.

The Claim of Exemption is **DENIED**. Debtor has adequate financial means to satisfy the statutory 20% garnishment without jeopardizing household support. Creditor shall prepare the Proposed Order consistent with this Tentative Ruling.

NOTE REGARDING TENTATIVE RULING

This tentative ruling becomes the Court's order, and no hearing shall be held unless a party contests. [Cal. Rules of Ct., rule 3.1308; Super. Ct. Monterey County, Local Rules, rule 7.9.] The party wishing to present oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING WILL BE VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.